

24STCV19154 24STCV19154

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C07%2F15%2F2026

Source SHA-256: e931b77285741ca98611f38329e6cb498b2e87de54c4df7ca8a542704661ac2e

Case Number: 24STCV19154 Hearing Date: July 15, 2026 Dept: 512

HEARING DATE: Weds., July 15, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Mountains

Restoration Trust, Inc. v. City of COMP.

FILED: 07-31-24

Calabasas

CASE NUMBER: 24STCV19154

NOTICE: OK

PROCEEDINGS: MOTION

FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: Defendant

City of Calabasas

RESP. PARTY: Plaintiff

Mountains Restoration Trust d/b/a TreePeople Land Trust

MOTION FOR

SUMMARY JUDGMENT/ADJUDICATION

(CCP § 437c)

TENTATIVE RULING:

Defendant City of

Calabasas's Motion for Summary Judgment, or in the Alternative, for Summary
Adjudication of Issues is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 25, 2026 ☐
Late ☐ None

REPLY: Filed
on July 2, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On July 31, 2024, Plaintiff Mountains
Restoration Trust, Inc. d/b/a TreePeople Land Trust ("Plaintiff") filed a
Complaint for Declaratory Relief against Defendant City of Calabasas
("Defendant"). (Compl., p. 1.) The underlying action arises from disagreements
between the parties regarding a Lease Management Agreement and Covenant Running
with the Land pertaining to a "12-acre real property located at Old Topanga
Canyon Road and Mulholand Highway known as Headwaters Corner [('Headwaters')]."
(Compl.)

On June 18, 2024, Defendant filed an Answer.

On February 14, 2025, Defendant filed a First Amended Cross-Complaint ("FACC") against Plaintiff.

On July 10, 2025, Plaintiff filed an Answer to the FACC.

On February 4, 2026, Defendant filed the instant Motion for Summary Judgment or in the Alternative Motion for Summary Adjudication of Issues (the "Motion") on the FACC.

On March 19, 2026, the Court granted Plaintiff's unopposed Ex Parte Application to Continue Hearing on the Motion and Trial. (3/19/26 Order.) In pertinent part, the Court continued the Motion hearing date from May 1, 2026, to July 15, 2026, and ordered that the Opposition and Reply deadlines are based on the July hearing date. (3/19/26 Order.)

On June 25, 2026, Plaintiff filed an Opposition to the Motion as well as objections to evidence filed in support of the Motion.

On July 2, 2026, Defendant filed a Reply as well as objections to evidence filed in support of the Opposition.

II.

Evidentiary

Objections

In conjunction with the Opposition, Plaintiff filed Evidentiary Objections to portions of the McConville declaration filed in support of the Motion as well as Exhibits 1, 18, 45, and 46 filed in support of the Motion. Plaintiff objects on various grounds, including failure to authenticate and hearsay. The Court OVERRULES these objections. Further, the Court notes that Exhibits 18, 45, and 46 do not exist in the Motion's supporting exhibits.

In conjunction with the Reply, Defendant filed Evidentiary Objections to portions of the Gaston declaration and Tabs 5-7/Exhibits

C-E filed in support of the Opposition. The Court OVERRULES the objections.

III.

Legal

Standard

Summary judgment

is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc. § 437c,

subd. (c).) The moving party

“bears the burden of persuasion that there is no triable issue of material fact.” (Aguilar v. Atlantic Richfield

Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) To secure summary judgment, a moving defendant may prove an affirmative defense, disprove at least one essential element of the Plaintiff’s cause of action . . . or show that an element of the cause of action cannot be established.”

(Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th

1461, 1465; Code Civ. Proc., §

437c, subd. (p)(2).)

“A plaintiff or

cross-complainant has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).)

On a motion for

summary judgment, the moving party’s supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

Code of Civil Procedure Section 437c,

subdivision (f) provides that a party may move for summary adjudication as to one or more causes of action or one or more claims for damages if it is contended that the cause or claim has no merit. Motions for summary

adjudication are procedurally identical to motions for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2); see *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 859.)

IV.

Allegations
in the FACC

In the FACC, Defendant/Cross-Complainant alleges that the parties entered into an agreement in 2004 regarding real property known as “Hedgewater Corner.” (FACC, ¶¶ 19-20.) As part of the agreement, twelve acres of the Hedgewater Corner were to be an Interpretative Center, which included converting the Bartelle House and the Masson House on the property into “active centers for interpreting local cultural and natural resources.” (FACC, ¶¶ 20-23.) Under the pertinent part of the agreement, Defendant leased to Plaintiff a portion of the property known as the Bartelle Property, which included the Bartelle House, and required Plaintiff to “procure and maintain fire and extended coverage insurance insuring the full replacement value of the Improved structures on the Leased Premises, including the Bartelle House.” (FACC, ¶¶ 25-27.)

The term of the agreement was for 10 years, commencing October 1, 2004, with two 10-year renewals permitted but only if Plaintiffs were not in default under the agreement. (FACC, ¶ 34.) The agreement was extended until the end of 2024. (FACC, ¶ 35.) “Under Paragraphs 33 and 41 of the Agreement, if at any time the City determined Cross-Defendants, and each of them, failed to perform or comply with any term of the lease portion of the Agreement, or otherwise, the City could declare Cross-Defendants, and each of them, in default and with not less than thirty days written notice, and after a reasonable opportunity to cure the default, the City could terminate the lease and reclaim the Leased Premises.” (FACC, ¶ 36.)

In August 2016, a fire “burned over 500 acres in Calabasas including the Bartelle House, bridge, and other areas of the Leased Premises.” (FACC, ¶ 415.) The parties thereafter engaged in discussion and negotiations regarding rebuilding and replacing the Bartelle house and bridge, but Defendant did not approve any of Plaintiff’s suggested plans for rebuilding/replacing. (FACC, ¶¶ 37-38.)

On May 21, 2024, Defendant demanded

Plaintiff cure the default under the agreement of “failing to propose an acceptable overall plan to oversee the Managed Property and create the interpretive programming as intended by the Agreement.” (FACC, ¶¶ 39-40.) Defendant asked Plaintiff to cure the default and to use the insurance proceeds received after the 2016 fire to repair and restore the leased premises in a manner acceptable to Defendant, or to terminate the lease agreement and tender the insurance proceeds it received to Defendant. (FACC, ¶ 40.)

On June 20, 2024, Plaintiff stated it had no obligation to Defendant under the agreement because Defendant had not yet approved a management plan, and Plaintiff did not have an obligation to restore the Bartelle House or leased premises. (FACC, ¶ 41, Exh. C.)

On June 21, 2024, Plaintiff attempted to extend the agreement for another 10 years; however, Defendant told Plaintiff “that due to its failure to cure the default, the Agreement was now terminated under both the Management and Lease provisions of the Agreement.” (FACC, ¶¶ 42-43.)

Thereafter, Plaintiff brought the instant action for declaratory relief “requesting the Court declare it is not in breach under the Agreement and that it may properly extend its lease under the Agreement for another 10 years.” (FACC, ¶ 44.)

The FACC raises causes of action for Declaratory Relief, Breach of Contract, Accounting, and Trespass.

V.

Discussion

Defendant moves for summary judgment or adjudication as to all four causes of action raised in the FACC. In support of the Motion, Defendant submits the same evidence for all causes of action. (See Motion, Sep. Statement.)

Procedural Issues

As an initial matter, the Court notes that the Separate Statement filed in conjunction with the Motion is defective. The Separate Statement is predominantly a recitation of excerpts from various

documents without any notation of which element or which specific cause of action the recitation is directed. A separate statement is meant to be "a concise list of the material facts and the evidence that supports them." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875, italics added, superseded by statute on other grounds.) It should "provide[] a convenient and expeditious vehicle" to resolve matters in a summary fashion. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 74, italics added.) Furthermore, California Rules of Court, rule 3.1350, subdivision (d) requires that the separate statement must separately identify "[e]ach cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350, subd. (d)(1)(A)-(B).)

Causes

of Action No. 1 & 2 – Declaratory Relief and Breach of Contract

A cause of action for breach of contract must plead "(1) the contract, (2) plaintiff's performance or excuse for non-performance, (3) defendant's breach, and (4) damage to plaintiff therefrom." (Acoustics, Inc. v. Trepte Constr. Co. (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Code of Civil Procedure section 1060 provides:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with

other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought.

(Code Civ. Proc., § 1060.)

In the

Motion, Defendant states that Plaintiff breached the written agreement by failing to have sufficient insurance coverage for the structures on the leased premises and failing to repair the leased premises, including the Bartelle House and its access bridge, in violation of ¶ 24 and ¶ 28 of the agreement. (Motion, pp. 13-14.) As a result, Defendant has suffered damages.

As an

initial matter, the Motion's contentions regarding Plaintiff's lack of adequate insurance coverage is not an issue raised in the FACC. The FACC "limits the issues to be addressed at the motion for summary judgment," and this argument is not an issue raised in the FACC. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.) As such, the Court does not address this contention at this time.

Next, the parties do not dispute that a

written agreement exists between the parties, and the written agreement is provided in conjunction with the FACC, Motion, and Opposition. (See FACC, Exh. A; Motion, Sep. Statement, Exh. 1, Exh. A; Opp., Sep. Statement, Gaston Decl., Exh. A.)

In support of the Motion, Defendant

provides evidence that Plaintiff stated it would not and ultimately did not rebuild structures on the leased premises after the 2016 fire in violation of the parties' agreement; as such, Plaintiff was in default, and Defendant notified Plaintiff on May 21, 2024 it was in default under ¶¶ 28 and 41 of the agreement. (Motion, Sep. Statement, ¶¶ 25, 31, Exhs. 1, 14-15.) Defendant further provides evidence that Plaintiff has refused to tender insurance proceeds to Defendant and terminate the agreement as required by ¶ 28 of the agreement in the event Plaintiff fails to promptly repair any damage to the leased premises. (Motion, Sep. Statement, ¶¶ 30, 32, Exhs. 1, 5-6.)

However, in review of the moving and reply briefs and accompanying evidence, the Court does not find that Defendant has met its burden of proving each element of the first and second causes of action in the FACC as is required for a cross-complainant. (See Code Civ. Proc. § 437c, subd. (p)(1) [“A ... cross-complainant has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the ... cross-complainant has met that burden, the burden shifts to the ... cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto”], emphasis added.) Indeed, Defendant failed to submit any evidence demonstrating Defendant’s performance or excuse for non-performance under the parties’ agreement. (See Motion, Sep. Statement, Exhs.) Further, Defendant’s evidence fails to demonstrate that there is no triable issue of material fact that the definition of “repair” as used in the parties’ agreement aligns with Defendant’s interpretation, or that Plaintiff’s repairs failed to satisfy the parties’ agreement so as to constitute breach.

Furthermore, even assuming Defendant met its burden of proving all elements of the first and second causes of action, the Court finds Plaintiff presented enough evidence to demonstrate a triable issue of material fact as to the interpretation of the contract’s terms, Plaintiff’s alleged breach of the parties’ contract, and Defendant’s performance or excuse for non-performance under the parties’ agreement. (See Opp., pp. 12-22, Opp. Sep. Statement, ¶¶ 5, 11, 25-26, 29-30, Gaston Decl., pp. 4-6, Steinberg Decl., COE Exhs. A-J.)

Plaintiff provides evidence of the parties’ agreement, which provides in pertinent part:

24. During the term of this Lease, MRT shall procure and maintain fire and extended coverage insurance (excluding, however, earthquake and flood insurance) insuring the full replacement value of the improved structures on the Leased Premises. Casualty Insurance. During the term of this Lease, MAT shall procure and maintain fire and extended coverage insurance (excluding, however, earthquake and flood insurance) insuring the full replacement value of the improved structures on the Leased Premises.

28. If the Leased Premises, or any

part thereof, shall be damaged, in whole or in part, by fire or other casualty, the Leased Premises shall be promptly repaired by MRT to the extent of the proceeds of casualty insurance maintained by MRT. In the event that the costs of repair exceed the available insurance proceeds, MRT may either (a) provide the additional funds required, or (b) terminate the Lease Provisions hereof and assign all rights in the casualty insurance proceeds to City. MRT shall promptly notify City of any water penetration of the Leased Premises.

(See Opp., Gaston Decl., Exh. A, ¶¶ 24, 28.)

Plaintiff then provides evidence that Plaintiff adequately repaired the Bartelle House after the fire in accordance with ¶ 28 of the parties' agreement by clearing the debris of the Bartelle House and other fire debris, hazardous trees and vegetation from the leased premises. Plaintiff asserts that it was not required by the agreement to rebuild structures completely destroyed by a fire and thus did not breach the agreement by declining to rebuild structures that were burned down on the leased property. (See Opp., Gaston Decl., pp. 4-6, Exh. A, ¶¶ 27-28.)

The Court finds that there is a triable issue of material fact as to the meaning of "repair" as it is used in ¶ 28 of the parties' agreement based on the factual circumstances presented in this case, and thus whether Plaintiff breached the agreement. (See Opp., Gaston Decl., Exh. A, ¶ 28.) Plaintiff further provides evidence that Defendant failed to move forward with site redevelopment planning, which thus made it "impossible for [Plaintiff] to proceed with construction of the new interpretative center and other planned improvements at Headwaters Corner." (Opp., Gaston Decl., p. 8, Exh. A.) The Court finds this evidence, when taken also with the express language of the agreement between the parties, demonstrates there is a triable issue of material fact as to Defendant's performance or excuse for non-performance under the contract as well as Plaintiff's alleged breach of the agreement in regard to Plaintiff's repairs of the leased premises following the fire.

Also, as previously addressed, the Separate Statement does not meet the requirements of Cal. Rules of Court, rule 3.1350, subd. (d)(1)(A)-(B).)

For the foregoing reasons, the Motion

is DENIED as to the first and second causes of action.

Third

& Fourth Cause of Action – Accounting and Trespass

As the

third and fourth causes of action require there being no triable issue of material fact as to the first and second causes of action – for instance, a cause of action for Accounting requires a balance to be owed by Plaintiff to Defendant, which here requires a breach of their agreement, and a cause of action for Trespass requires Plaintiff to not have a right to be on Defendant's property, which here requires a permissibly terminated lease agreement – the Court finds there is necessarily a triable issue of material fact as to these causes of action given the Court's above ruling and review of all the briefing and evidence.

Also, as

previously addressed, the Separate Statement does not meet the requirements of Cal. Rules of Court, rule 3.1350, subd. (d)(1)(A)-(B).)

For the foregoing

reasons, the Motion is DENIED as to the third and fourth causes of action.

VI.

Conclusion

& Order

For the foregoing reasons,

Defendant City of Calabasas's Motion for Summary Judgment, or in the Alternative, for Summary Adjudication of Issues is DENIED.

Moving party is ordered to
give notice.